

		Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.
4	Radcliffe vs. Sharma 2026-01561060 Demurrer to Complaint Motion to Strike Portions of Complaint	Defendants Nina Sharma, D.D.S. and Nina Sharma DDS Inc.'s (NSDI) Demurrer to the Complaint is overruled. "The primary right theory has a fairly narrow field of application. It is invoked most often when a plaintiff attempts to divide a primary right and enforce it in two suits. The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata. The latter application of the primary right theory appears to be most common: numerous cases hold that when there is only one primary right an adverse judgment in the first suit is a bar even though the second suit is based on a different theory or seeks a different remedy." (<i>Crowley v. Katleman</i> (1994) 8 Cal.4th 666, 682.) None of the causes of action improperly split a single cause of action into separate causes of action. They all seek damages for separate conduct: the negligence claim alleges Defendants performed the procedure negligently, the fraud claims allege Defendants misrepresented the extent of the procedure, and the violation of the code sections are distinct causes of action authorized by the Legislature. Thus, the demurrer is overruled on this ground. 2nd and 3rd Causes of Action – Intentional and Negligent Misrepresentation "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638.) "In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus, the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (<i>Id.</i> at 645.) "A plaintiff's burden in asserting a fraud claim against a

	corporate employer is even greater. In such a case, the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (<i>Ibid.</i>) Plaintiff has sufficiently alleged her fraud claim with particularity. The Complaint attributes the alleged misrepresentations to the "DDS Defendants" which is defined as all Defendants. Thus, it is reasonable to conclude Plaintiff is alleging Sharma herself and on behalf of NSDI and Lantzsch herself and on behalf of Noni made the false representations during the December 7, 2024 treatment. The allegation itself is sufficient to pass the pleading stage. Thus, the demurrer is overruled as to the 2nd and 3rd causes of action. 4th Cause of Action – Violation of Bus. & Prof. Code, § 654.3 "Before arranging for or establishing credit or a loan extended by a third party, a licensee shall give a patient a written treatment plan that complies with all of the following: [¶] (1) The treatment plan shall include each anticipated service to be provided and the estimated cost of each service." (Bus. & Prof. Code, § 654.3(h)(1).) Plaintiff has sufficiently alleged a violation of Section 654.3 against Sharma and NSDI. Defendants claim Plaintiff may not refer to the Defendants generally and must specifically identify the licensee. However, there is no requirement in the section that only one entity or individual may be a licensee. Thus, Plaintiff may name all Defendants as licensee for the purposes of the pleading stage. Thus, the demurrer is overruled as to the 4th cause of action. 5th Cause of Action – Unfair Business Practices "The scope of section 17200 is broad, encompassing anything that can properly be called a business practice and that at the same time is forbidden by law." (<i>Linear Technology Corp. v. Applied Materials, Inc.</i> (2007) 152 Cal.App.4th 115, 133.) Business and Professions Code, section 17200 ("UCL") prohibits "unfair competition," which is defined to include "any unlawful, unfair or fraudulent business act or practice" and "unfair, deceptive, untrue or misleading advertising" and any act prohibited by Section 17500." (<i>Gutierrez v. Carmax Auto Superstores California</i> (2018) 19 Cal.App.5th 1234, 1261.)
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Plaintiff has adequately alleged a cause of action for unfair competition. She has adequately alleged a claim of fraudulent conduct which is alleged to also deceive the public. Additionally, she has alleged an unlawful practice of violating Business and Professions Code section 654.3. Thus, Plaintiff Defendants demurrer is overruled as to the 5th cause of action.

Motion to Strike

Defendants Nina Sharma, D.D.S. and Nina Sharma DDS Inc.'s Motion to Strike Portions of the Complaint is GRANTED in part and OVERRULED in part.

Paragraph 44, page 8, lines 1 through 4; Paragraph 53, page 10, lines 1 through 5; and Paragraph 58, page 11, lines 9 through 13; and Paragraph 7, page 11, lines 26 through 27 of the Prayer are ORDERED stricken. Additionally, the reference to Section 17200 in Paragraph 57 is ORDERED stricken.

Plaintiff alleges "DDS Defendants' conduct as described herein, was malicious and oppressive and done with a conscious disregard of Plaintiff's rights and safety. Thus, Plaintiff is entitled to punitive damages against DDS Defendants under California Civil Code section 3294." Plaintiff's allegations of malice or oppression are conclusory and insufficient. She alleges no ultimate facts to support her claim. Thus, these allegations are stricken.

Plaintiff alleges "[p]ursuant to Business and Professions Code sections 654.3 and 1780, Plaintiff is entitled to...punitive damages." Business & Professions Code sections 654.3 permits punitive damages under subdivision (k) which authorizes remedies prescribed in Civil Code section 1780 which includes

punitive damages. (Civ. Code, § 1780(a)(4).) Thus, this portion is not stricken.

Plaintiff also alleges "[b]ecause of Defendants['] breaches and violations of Business and Professions Code sections 654.3 and 17200, et seq., Plaintiff is entitled to...punitive damages." Business and Professions Code section 17200 does not have a similar provision. Thus, the reference to Section 17200 is stricken.

Plaintiff's request for punitive damages in the prayer is not stricken because Plaintiff has sufficiently alleged a claim for fraud.

Plaintiff's request for attorney's fees is stricken because Plaintiff alleges no basis for recovery of those fees.